HARBOURLIGHT MEDIA

Clearance Guide: Comparative Claims

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1. What this guide covers

This guide covers claims that compare a product with a competitor or with the rest of the market. It is used by the Clearance Executive who reviews the copy, from the first read until the issue is settled, and by Agency Liaisons advising agencies before they submit.

It arises in all five categories: medicines said to work faster, credit said to be rated higher, food and drink said to taste better or to sell more.

A claim about what a product does for health, with nothing to compare it with, is a health claim, and the Health Claims guide covers it.

Whether a campaign's spots may be transmitted is a separate question, settled by the category's own code. This guide is about the copy.

2. How it usually shows up

- rankings such as number one in Britain or outsells every competitor
- claims to beat the leading brand or to be twice as effective as the rest
- a side-by-side shot with a rival product
- preferred or rated higher, without saying by whom or on what measure

3. What the executive checks

For a comparative claim, the Clearance Executive checks, in this order:

1. Identify what is compared, with what, and on what measure.
2. Check the comparison is like with like: the same kind of product, the same period and the same market.
3. Check the competitor is identifiable, or that a comparison with the whole market is covered by the evidence.
4. Ask for the data or the independent test behind any objective claim, and check it is current.
5. Check that a named or shown competitor is represented fairly and not denigrated.

4. Evidence to ask for

- the sales data or the market share figures, and the period they cover
- independent test results and the method used
- for medicines, head-to-head evidence against the product compared

5. When the copy can be cleared

The copy can be cleared once the comparison is like with like, current, verifiable and fair. The usual amendment is to narrow the claim to what the evidence shows, such as preferred in an independent test in place of a ranking, with the basis on screen.

6. What the agency should do

Before submitting, and when answering a query, the agency should:

- State the basis of the comparison on screen.
- Keep rankings to what current data for the same market and period show.
- Send the data and the test method with the copy.
- Show competitors fairly.

7. When to ask for a legal review

Ask for a legal review when a competitor is named or shown, or when a claim rests on the advertiser's own research.

The Legal Adviser records the review on the campaign, and its view carries more weight than any other note.

8. Recording the outcome

The outcome is recorded in an update on the campaign: the copy amended, the evidence accepted, or the copy cleared as submitted.

The assessment then recommends one of the decisions open for the campaign, and a Clearance Controller decides, as the Advertising Clearance Policy describes. Copy that cannot be cleared is rejected, whatever its spots' results.